

**ALABAMA DEPARTMENT OF REVENUE
ADMINISTRATIVE CODE**

**CHAPTER 810-3-61
ALABAMA ACCOUNTABILITY ACT - CREDITS FOR SCHOLARSHIP GRANTING
ORGANIZATIONS**

**810-3-61-.03 Application Of Scholarship Granting Organizations
(SGOs) For Participating In The Scholarship
Program.**

(1) Scope: Act 2013-64, as amended by Acts 2013-265 and 2015-434, provides for the creation of an SGO to receive scholarship donations for the purpose of making scholarship grants. This rule prescribes procedures for the inclusion of SGOs on the Department's list of organizations eligible for receiving scholarship donations entitling donors to the tax credits.

(2) Organizations must apply to the Department using a form available on the Department's website after July 1, 2013.

(3) The IRS approval letter exempting the organization from federal income tax pursuant to Section 501(c)(3) of the Internal Revenue Code must be submitted to the Department as part of the application process.

(4) The SGO must state that it will abide by all requirements in the statute and applicable regulations.

(5) By August 1, 2013, the Department will notify the qualified SGO that it is being included in the list being placed on the Department's website, of organizations approved to accept qualifying scholarship donations pursuant to Section 9 of the Act.

(6) For each application received after the initial cut-off date, the SGO will be notified by the Department if it qualifies, and if so, its name will be added to the list of qualified organizations on the Department's web site.

(7) After receipt of its qualification notice, an SGO may accept scholarship donations, pursuant to Rule 810-3-61-.04.

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Statutory Authority: Code of Ala. 1975, §§40-2A-7(a)(5), 16-16D-1.

History: New Rule: Filed August 23, 2013, effective September 27, 2013. **Amended:** Filed November 30, 2015; effective January 4, 2016.